

BIRLA INSTITUTE OF TECHNOLOGY & SCIENCE, PILANI

CONSTITUTION OF THE BITS STUDENTS' UNION

Certified by the EC on 26th November, 2024

PREAMBLE: OBJECTIVE OF THE UNION

1. The Union shall strive to protect the students by any fair means available.
2. The Union shall endeavour to promote all activities relating to academic awareness, cultural affluence, physical fitness, and general welfare of the students.
3. The Union shall seek to impart a sense of fair-play and security among the members.
4. The Union shall endeavour to lead by example in the domain of transparency in all its activities and decisions.

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SECTION A: MEMBERSHIP

1. All regular students of BITS Pilani, Pilani Campus, including students admitted in international collaboration programmes for the duration of their enrollment on campus, but excluding Ph.D, are ipso facto members of the Union.

2. All the members of the Union constitute the General Body Members (GBM).

3. The semesterly membership fee shall be Rs. 450/- (Rupees four hundred and fifty only). All the members of the Union shall pay this fee.

4. The Union Council may fix any other amount from time to time. The proposal for another amount shall have to be ratified by at least two-thirds of the entire Union Council.

SECTION B: SUPREMACY OF THE GENERAL BODY

1. The General Body Members are empowered to attend any UC GBM meeting and shall have the right to direct their queries to the Union Council.

2. The Union Council is always answerable to the General Body Members, who have the right to direct their queries to the Union Council.

3. Any motion initiated by at least one-third of the General Body members registered on campus in the concerned semester and passed by at least two-thirds of the General Body members registered on campus in the concerned semester shall be binding upon the Union Council and all its organs.

4. Any General Body Member can report a violation of the Students' Union Constitution to the Election Commission. The Election Commission would be liable to uphold the spirit of the Constitution.

SECTION B-A: RTI: RIGHT TO INQUIRY

1. Any Union Council member is entitled to any information regarding the workings of the Students' Union.

2. Any General Body Member is entitled to any information regarding the workings of the Students' Union except on matters deemed to be of a sensitive nature by the President or the General Secretary. If the President or the General Secretary terms the information as sensitive, they shall need to justify it to the EC and the CRC, who will have the final say over the nature of the information being asked.

3. Under this provision an enquiry may be submitted by emailing the concerned representative. A copy of the enquiry must also be sent to the EC and the CRC. A response must be provided within 72 hours, a copy of which should also be sent to the EC and CRC.

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SECTION C: THE STUDENTS' UNION

SECTION C-A: THE UNION COUNCIL

1. The Union Council shall comprise of:
    a. The President
    b. The General Secretary
    c. One representative from Meera Bhawan for the number of residents equal to the average number of residents in any other occupied hostel
    d. One representative of each of the other occupied hostels
    e. One representative of the day scholars
    f. One ex-officio member
2. The Union Council shall be the supreme governing body of the Union. All decisions of the Union Council shall be binding upon all its organs.
3. All matters of the Union shall be administered by the Union Council or by any other body appointed by the Union Council for the purpose. However, this shall be in accordance with all the other clauses mentioned in the Students' Union Constitution and the Procedure Manual in this regard.

4. The ex-officio member shall be the General Secretary of the outgoing Union Council. In case of their inability to do so, the outgoing Union Council will nominate one of its members to take their place. The ex-officio shall not have any voting rights and shall not be considered for quorum requirements. The ex-officio member must be in their 4th year and present on campus.

5. In the event of the occurrence of a vacancy in the Union Council to the post of the ex-officio member, the members of the previous Union Council present on campus at that time shall nominate one person from among themselves to fill the aforesaid vacancy. **This clause overrides all other clauses in this regard.**

6. The quorum at a meeting of the Union Council shall be at least three-fourths of the elected members.

7. In every meeting of the Union Council, every elected member shall have one vote in every issue taken up for voting. In case of a tie, the President shall have a casting (or second) vote. The casting vote shall be transferred over to the General Secretary, in case the President is absent from the meeting.

8. Any elected Union Council member shall convene the Union meeting when the situation warrants. Such a meeting can be adjourned or postponed only by a simple majority of the elected Union Council present.

9. UC GBM meets must be declared to the GBM through a root mail 24 hours before the meeting commences. The agenda should be declared before the commencement of the meeting. This criteria can be relaxed in case of an emergency meeting.

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SECTION C-B: Students Union Executive Committee and Core Committee :

1. The Students' Union Executive Committee and Core Committee shall be the administrative and operational workforce of the elected representatives. Their primary responsibilities include assisting in the Union's daily functioning, the execution of manifesto points, and supporting initiatives aimed at enhancing student life on campus.

2. The Core Committee shall consist exclusively of first-year students, including a minimum of three girls, assuming sufficient applicants.

3. Core Committee members shall be selected by the Union Council at the start of the tenure of the President and General Secretary.

4. Core Committee members shall be answerable to the Union Council as a whole and their respective Hostel/Day Scholar Representatives.

5. The Core Committee members' tenure shall end along with the tenure of the Union Council.

6. The Executive Committee shall consist exclusively of second-year students, including a minimum of three girls, assuming sufficient applicants.

7. The Executive Committee shall be directly answerable to the President and General Secretary.

8. The President and General Secretary shall notify the GBM about the composition of both the Core Committee and Executive Committee at the start of each semester. Any changes to the composition or structure of these committees during the semester shall also be communicated to the GBM in a timely manner.

9. The President and General Secretary shall ensure all decisions related to the committees' composition, roles, and responsibilities are clearly communicated to the GBM to maintain transparency and build trust among the student body.

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SECTION C-C: Students Union Technical Team (SUTT) and Students Union Media Team (SUMT) :

1. The Students' Union Technical Team (SUTT) and Students' Union Media Team (SUMT) are integral organs of the Students' Union. They shall function as specialised teams supporting the Union's operations in technical and media domains respectively.

2. Both SUTT and SUMT leads shall consult the President and the General Secretary for all relevant projects in which the Union is a stakeholder.
3. SUTT and SUMT shall have the final say in operations, including recruitment, termination, PoR transfer and projects related decisions of the teams, excluding finances.

4. The Union shall bear the financial costs of operating SUTT and SUMT.

5. The President and General Secretary shall facilitate collaboration between these teams and other Students' Union bodies.

6. **Roles and Responsibilities: SUTT (Technical Team):**

   i) The SUTT shall be responsible for managing all technical aspects of the Union, including the development and maintenance of the SU App, the StudyDeck, and any other technical initiatives undertaken by the Union.

ii) They shall be responsible for providing vendors with billing softwares and the cab vendor portal, the vendor side applications of the SU app.

iii) The SUTT lead, selected independently by the team, shall serve as the sole point of contact with the Union.

iv) The codebase, along with the data is the sole intellectual property of the team.

7. **Roles and Responsibilities: SUMT (Media Team):**

i) SUMT shall be responsible for handling the Union's public relations and managing all its social media platforms.

ii) They shall cover Union activities and events throughout the semester and ensure timely dissemination of Union updates, achievements, and initiatives.

iii) The SUMT lead, selected independently by the team, shall serve as the sole point of contact with the Union.

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SECTION D: FUNCTIONS AND POWERS OF UNION COUNCIL MEMBERS

1. The members of the Union Council shall have the right to introduce any matter related to student interest at the meetings of the Union Council for discussion and voting.
2. In the event of a necessity, they shall represent the Union, wherever deputised. The member deputising should be chosen by 2/3rd members of the UC, they will have to present the decisions made on behalf of the UC in the next UC GBM meeting.
3. The elected H-Reps and the D-Rep shall be assigned a set of department(s) or/and club(s). A list of the same should be provided to the EC and the CRC by the General Secretary within two weeks of elections.
4. The H-Reps and the D-Rep shall monitor the process of inventory maintenance in their allotted group and shall report any discrepancy to the Union Council and the CRC, failing which they shall be answerable.
5. The H-Reps and the D-Rep shall be solely responsible for the bills submitted to them.
6. The H-Reps and the D-Rep shall display the list of orders placed/distributions of souvenirs (T-shirts, sweatshirts, caps etc.) in their respective electorate.
7. The H-Reps and the D-Rep shall also perform all the other duties laid down in the Procedure Manual.

SECTION E: THE STUDENT SENATOR

1. The President shall call for applications from GBM for the student member to the Senate latest by the second week of September.
2. The President along with the General Secretary and one member each from the CRC and the EC shall propose names for membership to the Senate.
3. The same bench along with the existing senator, shall interview the candidates and select the new member by the second week of November.

SECTION F: FINANCIAL TRANSACTIONS

1. The financial transactions of the Union Council shall be classified under three categories as follows:

   FT1 category: Transactions of all the departments and clubs functioning during OASIS, APOGEE.

   FT2 category: Transactions of all the clubs functioning for all activities other than OASIS, APOGEE.

   FT3 category: Transactions other than those specified in FT1 and FT2 categories.
2. The President shall be solely responsible for financial matters and statements pertaining to FT1 category and FT3 category.
3. The General Secretary shall be solely responsible for financial matters and statements pertaining to the FT2 category.

SECTION G: CLEARANCE CELL

1. The composition of the Clearance Cell shall depend upon the category under which the financial matters and statements under (FT1/ FT2/FT3).
2. The Clearance Cell shall comprise:
   a. The President, respective H-Rep-in charge/ D-Rep-in charge and the CRC, in case of financial transactions relating to FT1 category.

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b. The General Secretary, respective H-Rep-in charge/D-Rep- in charge and the CRC, in case of financial transactions relating to FT2 category.

c. The President and the CRC in case of financial transactions relating to the FT3 category.

3. The Head of the Clearance Cell shall be the President for FT1 and FT3 categories and the General Secretary in case of FT2 category.

SECTION H: FUNCTIONS AND POWERS OF THE CLEARANCE CELL

1. The members of the Clearance Cell (except the H-Rep/D-Rep) can veto any payment on the grounds of improper bills being submitted.
2. In case of a certain bill being against the best interest of the GBM in the opinion of the members of the clearance cell, they can refer the matter to a UC GBM meeting held within three days of the issue being raised. The payment will only be processed if a simple majority of the council votes in favour of the bill. The vote shall be conducted using an anonymous ballot system.

SECTION I: DECISIONS REGARDING FINANCIAL TRANSACTIONS

(a) BUDGETS:

The budgets should be presented to the Clearance Cell in the Semester Budget Meet, which shall be held each semester.

(b) ADVANCE REQUISITION FORMS/ FORWARDED LETTERS/ BILLS:

1. The Advance Requisition Forms/ forwarded letters/ bills shall be taken up by the Clearance Cell for discussion within one week of submission.

2. The proposition put forth shall be implemented as deemed by the Clearance Cell.

3. In the event of a dispute the Clearance Cell shall review the proposition in consultation with the concerned H-Rep.

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SECTION J: FUNCTIONS AND POWERS OF THE PRESIDENT

1. The President shall be the Head of the Union Council and Clearance Cells pertaining to FT1 and FT3 categories and the General Body.

2. They shall preside over all the meetings of these bodies when present.

3. They shall have the power to summon any meeting of the Union Council, the Clearance Cell or the GBM and also the power to adjourn or postpone all such meetings summoned by them.

4. They shall have the power to speak on behalf of the Union with any authority without prior consultation with other members of the Council; if urgency is warranted by the circumstances. However, the results of such meetings shall have to be ratified by a simple majority of the Council members present within a maximum of one week.

5. They shall be signing authority for all financial matters and statements of the Union coming under FT1 and FT3 categories and will be held responsible for the same.

6. The President may fix an amount to be charged from the members of the Students' Union for any activity organised by the Union Council after having the same ratified by at least two-thirds of the total Union Council. The GBM shall be informed about their decision within 24 hours.

7. In the event of a non-confidence motion being initiated against the President, all the financial statements and bills under their purview shall be signed by both the President and the General Secretary till the time of the declaration of result of the voting aforesaid motion.

8. The President shall convene at least ONE meeting of the entire Students' Union every semester which shall amount to a review of the working of the Union Council over the semester.

9. Acting President-

    (a) In the event of a medical emergency leading to the President being unable to perform their duties, two-thirds of the Union Council may submit a motion to the EC nominating, from within themselves, an "Acting President". The General Secretary cannot be nominated as the Acting President. Once ratified by the EC, the nominated member shall serve as the Acting President till the President returns.

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(b) Every document that requires the signature of the president will, throughout this duration, require the signature of the Acting President as well as the General Secretary.

SECTION K: FUNCTIONS AND POWERS OF THE GENERAL SECRETARY

1. They shall be responsible for meetings of the Council, keeping minutes of the same and publishing them within 48 hours of the adjournment of the meeting. They are also responsible for maintaining and publishing the minutes for the UC GBM meeting.

2. They shall be responsible for all financial matters and statements pertaining to the FT2 category.

3. They shall be the signing authority for all financial matters and statements of the Union coming under the FT2 category and will be held responsible for the same.

4. They shall be responsible for the student representation at seminars, technical fests, and cultural festivals at BITS and outside, once the Union Council has approved such participation.

5. They shall be responsible for maintaining an inventory of all property owned by bodies under the Students' Union, failing which it shall be considered a **flagrant** violation.

6. They shall be responsible for maintaining an inventory of all property owned by bodies under the Students' Union and sharing it with the CRC and StuCCA/CoStAA (whichever relevant) before and after the respective fests.

7. In the event of a no-confidence motion being initiated against the General Secretary, all the financial statements and bills under their purview shall be signed by both the President and the General Secretary till the time of the declaration of result of the voting aforesaid motion.

8. The General Secretary shall convene at least one Union Council meeting every month. This period shall exclude semester breaks.

9. Acting General Secretary-

    (a) In the event of a medical emergency leading to the General Secretary being unable to perform their duties, two-thirds of the Union Council may submit a motion to the EC nominating, from within themselves, an "Acting General Secretary". The President cannot be nominated as the Acting General Secretary.

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Once ratified by the EC, the nominated member shall serve as the Acting General Secretary till the General Secretary returns.

(b) Every document that requires the signature of the General Secretary will, throughout this duration, require the signature of the Acting General Secretary as well as the President.

SECTION L: CONSEQUENCES OF VIOLATING THE CONSTITUTION

1. Any act by a member of the Students' Union that directly violates the constitution and/or affects the well-being of the Union or the proper functioning of the Union Council, and not termed as a flagrant violation of the constitution shall be deemed a Constitutional Violation. This includes, but is not limited to misuse of power or resources, non-fulfilment of duties, etc.

2. Any member of the Students Union may approach the EC, or the CRC in case of financial matters, to report a constitutional violation. They may reach out to the aforementioned parties through an email.

3. Constitution violations are categorised into minor and major violations. The decision of categorising resides with the EC, or the CRC in matters of financial concern.

4. When a violation of the constitution is recognised by the EC, or the CRC in case of financial matters, the aforementioned party shall release a statement to the GBM containing the details of the violation and the consequences being enforced within 48 hours of the commencement of the penalty by the means of a root mail, regardless of the category of the violation.

Section L-A: Minor Violations of the Constitution

The consequences to a minor violation may be any of the following, as deemed by the EC or the CRC in the case of financial matters, after the conclusion of an investigation:

1. Written Warning:
   The EC or the CRC in case of financial matters, shall release a public warning, informing the GBM of the violation.

2. Suspension of Duties:
   The offender may lose certain privileges including but not limited to losing voting rights in UC meetings, or any other penalty as decided by the EC.

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3. Financial Penalties:
   The offender shall be required to repay the misused or stolen funds, or an appropriate amount to compensate for damages caused, as decided by the CRC.

Section L-B: Major Violations of the Constitution

An act may be deemed a major violation by the EC or CRC in the case of financial matters. The consequences of a major violation may be any of the following, as deemed by the EC or the CRC in the case of financial matters, after the conclusion of an investigation:

1. Financial Penalties:
   The offender shall be required to repay the misused or stolen funds, or an appropriate amount to compensate for damages caused, as decided by the CRC.

2. Suspension from Office:
   Apart from financial compensations (if any), the candidate in question shall not be eligible to exercise any of their powers for the below mentioned periods of time:

   (i) First Major Violation- Suspension of 1 week from office

   (ii) Second Major Violation- Suspension of 3 Weeks from office

3. Direct Removal from Office:
   The most severe cases of abuse of power shall be treated as a **flagrant** violation of the constitution. The EC would then begin the process of removal from office, as detailed in Section T.

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SECTION M: CORROBORATION AND REVIEW COMMITTEE (CRC)

1. The CRC shall comprise 3-4 signatories and 3-4 volunteers.

2. One member from the Election Commission, one member from the previous Union Council, a member of staff shall act in advisory capacity to the CRC.

3. The CRC shall be an independent, self-sustaining body answerable to the General Body members. In case of a vacancy/vacancies arising in the CRC, the CRC in office (signatories) shall nominate person(s) to the same. The newly nominated person(s) shall assume office one day after the notice regarding the same is displayed to the GBM.

4. The ex-members/members including both volunteers and signatories of the CRC shall not be eligible to contest/ hold any post in the Senate, Union Council, or any other organ of the Union.

5. The CRC shall bring to the notice of the General Body, information regarding matters of the Union Council and its organs and call for a GBM when it feels the need for it.

6. The CRC shall have the right to inquire into any member of the Union Council or its organs regarding their functioning pertaining to financial matters. The concerned person(s) are bound to answer the queries of the CRC.

7. The CRC shall have the right to enjoin any member of the Union Council or its organs to maintain records or proofs of financial transactions in any form (ledgers, counterfoils, invoice statements, credit memos, etc.) and shall be produced to the CRC on demand. Gratuitous failure to maintain/produce such records/proofs shall be a **flagrant** violation of the constitution.

8. The CRC shall bring to the notice of the GBM any violations in the Procedure Manual. They shall enforce the laid down course of action in case of flagrant violations.

9. The CRC shall have the right to deputise persons (CRC representatives) for the purpose of checking financial transactions, conducting enquiries etc. The concerned persons shall cooperate with the CRC Representatives in this regard.

10. The CRC shall keep a record of all the official reports comprising ARC and ORC reports, budgets, review reports, inventory lists.

11. The CRC shall be responsible for interpreting the financial sections of the Procedure Manual. Any interpretation by the CRC shall be submitted in writing to the concerned party.

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SECTION N: ELECTION COMMISSION (EC)

1. The Election Commission shall comprise of
    a. At least three Election Commissioners
2. The Election Commission shall be responsible for conducting free and fair elections and all other activities delegated to it constitutionally.
3. The members/ex-members of the Election Commission shall not be eligible to contest/hold any post in the Senate, Union Council and their organs.
4. After consulting the Election Commission members designate, the EC shall be allocated a tentative budget constitutionally. This money will be at the disposal of the EC from the start of the next academic year.

5. In the event of vacancy/ vacancies in the Election Commission, the Election Commission in office shall nominate person(s) to the same. The newly nominated person(s) shall assume office one day after the notice regarding the same is displayed to the GBM.

6. In case of a dispute over the interpretation of the Constitution, Oasis and APOGEE charters, and the non-financial sections of the Procedure Manual, the Election Commission shall judge the case. Any decision taken by the Election Commission in this regard shall be final and binding on the Union Council and its organs.

7. The EC shall decide, on a case by case basis, whether a given matter, regarding interpretation of the Constitution or otherwise, is a financial matter.

8. The EC shall issue public documents within 48 hours explaining the procedure it has undertaken when the EC uses ad hoc documents.

9. The EC, or the CRC in the case of financial matters, shall reserve the right to relax timelines present in the Constitution in case of unprecedented circumstances with respect to normal timeline and duration of the semesters.

10. The EC, in consultation with the CRC in the case of financial matters, will conduct a meeting with elected representatives within seven days of the conclusion of the election procedure explaining their responsibilities.

SECTION O: ELECTIONS

1. The Election Commission shall call nominations to the posts of President, General Secretary, Hostel Representatives and Day Scholar Representative. The Election Commission shall conduct elections for the above posts but polling should not be within two weeks of the receipt of nominations.

2. Candidates declared elected in the elections shall assume office immediately after being administered the oath of office and shall continue to hold the same until the successor to that office is elected or their tenure ends, whichever is earlier.

3. The members of the Union Council shall cease to hold their respective offices if:

    a. A NO-CONFIDENCE motion is passed against them

    b. As and when they fail to fulfil any of the eligibility criteria as mentioned in the relevant clause(s) of this section.

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4. The President and the General Secretary shall be elected by a single plurality of votes cast through secret ballot by the members of the General Body present and voting. A minimum of 15% of the electorate must be voting for the election to be deemed valid.

5. The Hostel Representatives and the Day Scholar Representative shall be elected by a single plurality of votes in their respective electorates. A minimum of 15% of the electorate must be voting for the election to be deemed valid.

6. The President shall be a student of the third or fourth year levels of any of the various academic programs of the institute during his tenure provided:

    a. They are a member of the General Body

    b. They shall remain on campus for both the semesters covering their specified tenure in office.

7. The General Secretary shall be a student of the third year level of any of the various academic programs of the institute during his tenure provided:

    a. They are a member of the General Body

    b. They shall remain on campus for both the semesters covering their specified tenure in office.

8. To determine the year level in O-6 and O-7, identity numbers shall be used.

9. The Hostel Representative shall be elected by the bonafide members of the General Body residing in that particular hostel from among themselves by single plurality of votes.

10. The Day Scholar Representative shall be elected by the bonafide members of the General Body who are Day Scholars, from among themselves by single plurality of votes.

11. Each member of the electorate (as specified in clause O-4 and O-5) shall be entitled to a single non-transferable vote cast in secret ballot.

12. Students not registered on campus shall not have any voting rights.

13. In the event of a vacancy in the Union Council, the Election Commission shall hold by-elections for the same.

14. Nominations shall be invited within one week of the post falling vacant and elections held within three weeks of the occurrence of the vacancy.

15. After the elected members of the Union Council have assumed office, the Election Commission shall call for nomination(s) for post(s) still lying vacant and conduct election for the same in accordance with O-13 and O-14.

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16. Each person, can at a time, contest only one post of the Union Council. Each person can, at a time, hold only one post of the council and organs of the Students' Union. The word 'post' in this clause is defined as the posts of President, General Secretary, H-Rep, D-Rep, StuCCAn, CoStAAn, Coordinator/Secretary.

SECTION P: CLUBS

1. This section covers only those clubs that are financed either wholly or partly by the Students Union.
2. The Union Council may:
    a. Form a new club by separation of activity/activities from any existing club.
    b. Form a new club by uniting two or more clubs.
    c. Dissolve a club by a 2/3rd majority of the club's members, present and voting.
    d. Form a new club for a new sphere of activity.
3. The Union Council may increase the range of activities / alter the name of any club.
4. The affairs of a club shall be administered by the Secretary and Joint Secretary/Joint Secretaries or their equivalents of the club.
5. In the event of a vacancy administered by the Secretary, the Joint Secretary shall act as Secretary until the new Secretary assumes office.
6. In the event of the Secretary being unable to discharge their duties for a temporary period, the Joint Secretary shall assume their powers / responsibilities for the period.
7. Membership of the clubs will be restricted to the members of the Students' Union, and shall be granted to members of the Union fulfilling the criteria detailed in the APPENDIX. The member of any club shall cease to be a member when he ceases to be a member of the Students' Union.
8. The proper conduct of all election to clubs shall be supervised, directed and controlled by
    a. The Election Commission, until the new General Secretary assumes office.
    b. The General Secretary, thereafter.
9. The Election Commission shall ensure that this election process is completed within seven days and not within three days of the last date for filing nomination.

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10. Activities of a club shall remain suspended if none of the posts of the club are filled by the election process detailed in P-8 and P-9.

11. The General Secretary shall call for fresh nominations to all posts of clubs lying vacant when he assumes office.

12. In the event of no nominations being received for some post of a club, the General Secretary shall nominate a suitable person from the members of the club to the post after getting it approved by at least a simple majority of the Union Council members present.

13. In the event of any post of a club falling vacant, the General Secretary shall call for nominations to the same within one week of the post falling vacant; and shall ensure that the election process is completed within one week of the call for nominations.

14. At all these elections / By-Elections

    a. Current members of the club as at the time of the elections shall constitute the electorate.

    b. Only members satisfying eligibility criteria for the posts at the time of the elections shall be able to contest the post.

15. The Secretary of the club shall present budgetary proposals for their club for the semester/academic year within one week of assuming office or one week of the Union Council assuming office, whichever is later.

16. The Secretary of a club shall be responsible for:

    a. Reports of the inventory and activities of the club shall be presented at least once a semester whenever called for to the General Secretary failing which it shall be considered a **flagrant** violation.

    b. A list of all members of their club shall be submitted before their term expires to the General Secretary.

    c. Outgoing club Secretaries and Joint Secretaries must submit a document detailing ongoing initiatives, financial status, and inventory records to the General Secretary within one week of their term ending.

17. Copies of the list of members of a club shall also be displayed by the Club Secretary in public at least one month before the end of the academic year.

18. Any appointment made or terminated by the Secretary shall be communicated in writing to the General Secretary within 24 hours of the same.

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19. The Secretary / Joint Secretary can be removed from office by either the following electorates:

    a. Current members of the club - A two-third majority of the electorate present and voting in support of the motion will suffice to remove the Secretary from office.

    b. The Union Council, where the motion shall be deemed to have been passed if supported by a simple majority of the club members AND a simple majority of the Union Council, present and voting. The bonafide members of the club will be verified by the members list given to the General Secretary.

SECTION Q: BUDGET FOR SU CLUBS

1. All clubs under the Students' Union will be required to submit a budget proposal each semester.

2. At the start of every semester the clubs shall submit the objectives of the club for the current semester and descriptions of the activities planned by it.

3. The clubs shall submit a report to the General Secretary of the work done by them in the semester at the time of bill clearance, clearly stating the amount spent on each activity. There shall be a review meeting for the same chaired by the General Secretary in the presence of the Union Council and the CRC.

4. The bills will be cleared based on the club meeting the objectives stated at the start of the semester through the activities done by it and the budget approved for the Club in the Semester Budget Meet.

5. The SU clubs shall allow their finances to be scrutinised by CRC for allocation of funds and bill clearance.

SECTION R: FUNDING FOR NON-SU CLUBS

A. Funding for activities during festivals

1. In case a non-SU club wants funding/prize money for their activities during the fests from the SU, they shall approach the President at the time of budget meeting for the departments/clubs working for the fest.

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2. The clubs shall submit a proposal stating the amount of money required by them and the purpose for which they require it.

3. They shall be allocated money following the same procedure as laid down for other SU clubs/depts. And shall be required to submit their bills for clearance.

4. The non-SU clubs shall allow their finances to be scrutinised by CRC for allocation of funds and bill clearance.

B. Funding for activities during the academic year excluding fests

1. The non-SU club shall approach the General Secretary at the time of semesterly budget meeting for SU clubs for funding any activity during the academic year.

2. The clubs shall submit a proposal stating the amount of money required by them and the purpose for which they require it.

3. They shall be allocated money following the same procedure as laid down for other SU clubs and shall be required to submit their bills for clearance.

4. The non-SU clubs shall allow their finances to be scrutinised by CRC for allocation of funds and bill clearance.

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SECTION S: PROCEDURE FOR A NEW CLUB TO COME UNDER STUDENTS' UNION

In case a club, after its formation, wishes to come under the Students' Union, it shall follow the given procedure:

1. A representative of the club shall approach the General Secretary with a written statement to come under the SU.
2. The representative shall present the charter of the club to the Union Council along with the financial statements of the activities undertaken by it in the preceding year.
3. The club shall also submit a document stating its uniqueness in BITS and the objectives of the club.
4. The club shall remain under review for 2 consecutive semesters at the end of each of which, there shall be a submission of a performance report to the Union Council. The UC shall vote by a simple majority for continuation of the review.

5. The club shall be considered inducted under SU if 2/3rd of the Union Council votes in its favour and shall henceforth follow all the constitutional rules for functioning of the club.
6. The General Secretary shall put up a notice regarding the new club within 48 hours of its induction.
7. The elections to the post of Secretary and Joint secretary of the new club shall be called by the General Secretary within a week of its induction.
8. Removal of a club from SU can only be initiated by 3/4th majority of the Union Council.

SECTION T: REMOVAL FROM OFFICE

(A) REMOVAL OF THE PRESIDENT / GENERAL SECRETARY

1. To initiate a no-confidence motion against the President/General Secretary, either one-third majority of the concerned electorate or two-third of the entire elected Union Council shall have to submit a signed memorandum to this effect to the Election Commission.
2. The above-mentioned referendum shall be constitutionally valid provided that at least two-third of the concerned electorate votes. A constitutionally valid referendum will be deemed to have been passed if at least two-thirds of the votes polled support the motion.

(B) REMOVAL OF THE H-REP/D-REP

1. Initiation of a no-confidence motion against the H-Rep/ D-Rep can be done by:
    a. (i) At least two-third of the entire Union Council.
    b. (ii) At least one-third of the concerned electorate.
2. A signed memorandum to this effect shall be submitted to the Election Commission.
3. The above no-confidence motion shall be constitutionally valid if at least two-third of the concerned electorate votes.
4. A constitutionally valid referendum will be deemed to have been passed if at least two-thirds of the polled votes support the motion.

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(C) REMOVAL OF MEMBERS OF ELECTION COMMISSION/CRC

1. Initiation of a no-confidence motion against the member(s) of the Election Commission / CRC can be done by:

    (i) At least 80% of the entire Union Council (rounded up).

2. A signed memorandum to this effect shall be submitted to the EC in case of the referendum being initiated against the member(s) of the CRC and to the CRC in the case of the referendum being initiated against the member(s) of the EC.

3. The referendum thus initiated shall be constitutionally valid if at least two-third of the total GBM votes.

4. A constitutionally valid referendum will be deemed to have been passed if at least two-thirds of the polled votes support the motion.

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SECTION U: AMENDMENTS TO THE CONSTITUTION

1. Any amendment to the constitution shall be initiated by at least eighty percent (80%) of the total Union Council or at least one-third of the total General Body Members. A signed memorandum has to be submitted to this effect to the Election Commission.

2. The above-mentioned referendum shall be constitutionally valid if at least two thirds of the GBM votes in favour.

3. The above referendum, if constitutionally valid, shall be deemed to have been passed if supported by at least two-thirds of the general body members voting.

4. The Election Commission shall conduct a review of the entire Constitution at least once every 3 years.

5. The reviewed Constitution shall have to be ratified by a simple majority of the Union Council present and voting. The quorum for such a meet shall be two thirds of the Union Council.

SECTION V: REFERENDUMS

1. Any issue with regard to the Union Council and its organs can be subjected to a referendum.

2. It shall be initiated by at least one-third of the general body or by at least 80% of the total union council members. A signed memorandum to this effect shall have to be submitted to the election commission.

3. The above-mentioned referendum shall be constitutionally valid if at least a simple majority of the general body members vote for the same.

4. The above referendum, if constitutionally valid, shall be deemed to have been passed, if at least two-thirds of the polled votes support the motion.

NOTE:

The word 'issue' shall not be taken to mean no-confidence motion or any amendment to the procedure manual.

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SECTION W: CONSEQUENCES OF FLAGRANT VIOLATION:

1. In the event of a flagrant violation being committed, the person responsible for the same shall cease to hold the relevant post(s) assuming the responsibility of which the aforesaid violation was committed.

2. The concerned person shall however resume the responsibility of the post(s), which he ceased to hold due to commitment of the flagrant violation, if a motion of confidence is passed in his favour by at least two–thirds of the concerned electorate .The motion of confidence shall have to be initiated by at least one-third of the concerned electorate. A signed memorandum to this effect shall have to be submitted to the election commission within a maximum of three days of removal from office.

SECTION X: StuCCA/CoStAA:

1. The Students' Council for Cultural Activities (StuCCA) is a committee elected by the concerned electorate in accordance with the elections called by the Election Commission. It shall be responsible for organising and conducting all activities relating to the annual cultural festival, OASIS and any other activity as determined by the Union Council. The StuCCA is bound by the rules laid out in the OASIS Fest Charter.

2. The Committee of Students for Academic Activities (CoStAA) is a committee elected by the concerned electorate in accordance with the elections called by the Election Commission. It shall be responsible for organising and conducting APOGEE, the annual

academic festival. The CoStAA is bound by the rules laid out in the APOGEE Fest Charter.

3. From time to time the Union Council may review the working of OASIS and APOGEE and frame charters, the OASIS Review Charter (ORC) and the APOGEE Review Charter (ARC) thereof. All rules governing OASIS and APOGEE shall be as per the above charters.

4. The elections to the StuCCA/CoStAA shall be carried out by the respective departments, with assistance from the EC if they require.

5. Experience of at least one Oasis and APOGEE (GLS and ABOVE).

6. The outgoing StuCCAn and the outgoing CoStAAn have the responsibility of informing the Election Commission of the newly elected office holder of their respective departments within 24 hours of election.

7. If any member of the department has concerns with the appointment of the StuCCAn/CoStAAn, they may raise the issue with the EC within 4 days of their appointment.

8. The StuCCA/CoStAA shall be held responsible for all decisions taken in their respective organisation, financial transactions and shall be answerable for inventory maintenance.

9. Any decision taken by at least two-thirds of the entire Council consisting of the Union Council shall be binding upon the StuCCA/CoStAA. In such cases, the President and General Secretary are part of the Union Council.

10. The Union Council can remove any StuCCA/CoStAA member from office if at least two-thirds of the entire Union Council supports an action of NO CONFIDENCE against him/her.

11. In the event of any post falling vacant in the StuCCA/CoStAA fresh elections shall be conducted within one week of the occurrence of the vacancy.

12. If the StuCCA/CoStAA unanimously (apart from the person in question) vote a head of department or club as someone who poses a threat to prevent their organisation (department, club etc.) from functioning, the President shall charge the respective head for all their organisational expenses incurred till date.

13. The CoStAAn/StuCCAn of the relevant departments shall be present during all negotiations and shall be consulted before finalising an MoU for all transactions pertaining to FT1.

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SECTION Y: ATTENDANCE:

1. Every UC member is expected to attend all UC and UC GBM meetings.

   (i) In the event that they do not attend at least two-thirds of the total UC and UC GBM meetings held until any given point (current meeting excluded), the EC shall ask said UC member to provide reasons for their absence in writing.

   (ii) Post this, the EC shall call for a vote amongst the UC members to decide if a referendum should be held in the GBM regarding the removal of said member.

2. Any UC GBM meeting, and by extension, any decisions taken in the same, shall be deemed null and void if the GBM is not informed of the meeting a minimum of 24 hours before the commencement of the meeting, unless ratified as an emergency by the EC.

3. The duties for taking attendance and establishing the quorum lie with the CRC for all UC and UC GBM meetings.

4. Attendance for every UC GBM meeting will be taken twice, once at the commencement of the meeting and the second before the vote.

SECTION Z:

1. The President, the General Secretary and the members of the Union Council shall be administered oaths of office in the presence of the Election Commission within 7 days of the declaration of the results by the Election Commission.

2. The oath administered to the President shall read:

   "I, _____, having been elected the President of the Students' Union, hereby do solemnly affirm that I will support the by-laws of the Students' Union; that I will bear true faith and allegiance to the same, and that I will diligently and conscientiously execute the position of the President without any favour, bias, or ill will."

3. The oath administered to the General Secretary shall read:

   "I, _____, having been elected the General Secretary of the Students' Union, hereby do solemnly affirm that I will support the by-laws of Students' Union; that I will bear true faith and allegiance to the same, and that I will diligently and conscientiously execute the position of the General Secretary without any favour, bias, or ill will."

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4. The oath(s) administered to the other members of the Union Council shall read:

> "I, _____, do solemnly affirm that as a member of the Students' Union I will, to the best of my ability, uphold, promote, and support the by-laws of the Students' Union and that I will faithfully, impartially, and justly perform all the duties and responsibilities of my present position according to the best of my abilities."

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APPENDIX

SECTION A1:

1. The provisions contained in this part will be binding on the Union Council and its organs unless.

    (i) The provisions laid down are amended by two thirds majority of the entire elected Union Council.

    (ii) The provisions laid down are in conflict with any clause(s) mentioned in the Constitution or the Procedure Manual. In such an event, the Union Council shall have to adhere strictly to the relevant clause(s) mentioned in the Constitution or the Procedure Manual.

2. Any change in section A1 and Section A2 shall be deemed to be an amendment to this Appendix and not of the constitution.

SECTION A2: CLUBS

1. The word “club” refers only to those clubs which are funded either wholly or partly by the Union.
2. The clubs mentioned under clause 6 of this section shall be bound by rules pertaining to their category.
3. A person who is elected /nominated to the post of Secretary/ Joint Secretary of a club should be a member of the club. He shall thereafter cease to be a member of the club only upon ceasing to be a member of General Body. This clause overrides all other clauses relating to membership in this section, in this regard.
4. If eligibility conditions to any post within the club are not met by any aspiring candidates to the post, the returning office may set a lower eligibility condition. This shall not be considered contravention of this Appendix.

The List of Student Union Clubs is:

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English Press Club

Hindi Drama Club

Music Club

Hindi Press Club

BITS Pilani Consulting Club

Astro Club

Gurukul

Fashion Club

Poetry Club

Communo

Renewable Energy Club

The BITS Review

SOVESA

Film Making Club

Photography Club

Debating Society

BITS Karaoke Club

Media Relations Club

Comedy Hub BITS Pilani

Creative Activities Club

Radio Control Club

The Press Clubs namely English Press Club and Hindi Press Club will be responsible for accurate and impartial dissemination of information regarding matters relevant to students.

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